

Amendment No. 1 to SB2547

Reeves
Signature of Sponsor

AMEND Senate Bill No. 2547*

House Bill No. 2516

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-211-803, is amended by adding the following as a new subsection:

(d) It is further declared to be the policy of this state to plan for sufficient landfill capacity to dispose of solid waste that is not recovered or recycled.

SECTION 2. Tennessee Code Annotated, Section 68-211-813, is amended by deleting subsection (c) and substituting:

(c) Each region shall develop a plan in accordance with §§ 68-211-814 and 68-211-815, including a narrative identifying where waste will be disposed and managed for the next ten (10) years, and for achieving compliance with the waste reduction and recycling goal required by § 68-211-861. The plan must be updated and resubmitted to the department at least once every ten (10) years.

SECTION 3. Tennessee Code Annotated, Section 68-211-814, is amended by deleting subdivision (a)(1) and substituting:

(a)

(1) Each region shall submit its new or revised plan to the department of environment and conservation by July 1, 2028. The plan shall be formulated in strict compliance with § 68-211-815. After receiving a plan, the department shall notify the region within thirty (30) days whether the plan includes all of the information required by § 68-211-815, and if not, identify all additional required information. If the department determines the plan is incomplete, the region shall

submit all required information within sixty (60) days of receipt of notification.

The department shall approve or disapprove the plan based on compliance with § 68-211-815 and the criteria established pursuant to subdivision (a)(4) within one hundred twenty (120) days after receipt of a complete plan. If a plan is disapproved, the department shall state in detail the reasons for such disapproval. The region shall resubmit a plan that corrects all deficiencies to the department within sixty (60) days of receiving the letter of disapproval.

Alternatively, the region may file a petition for appeal in accordance with § 68-211-113(a)(1) within thirty (30) days of receiving the letter of disapproval.

SECTION 4. Tennessee Code Annotated, Section 68-211-814(a), is amended by adding the following as a new subdivision:

(4) The underground storage tanks and solid waste disposal control board shall promulgate rules establishing criteria for review of regional plans by December 31, 2027.

SECTION 5. Tennessee Code Annotated, Section 68-211-816(a), is amended by deleting the following:

(a) If a municipal solid waste region fails to submit an adequate plan in a timely fashion or if the commissioner does not approve any plan submitted to it, or for any other noncompliance with a provision of this part, then the commissioner shall impose the following sanctions, as appropriate, on the noncompliant county or region:

and substituting the following:

(a) If a municipal solid waste region fails to comply with a provision of this part, then the commissioner shall impose the following sanctions, as appropriate, on the noncompliant county or region:

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.